

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

DECLARATION OF DAVID
GOLDEN IN SUPPORT OF
COMPLAINANT’S MOTION
TO COMPEL DISCOVERY
FROM RESPONDENT CMA
CGM, S.A.

I, David Golden, hereby declare as follows:

1. I am a partner at Constantine Cannon LLP, Counsel for Complainant in the above-captioned litigation matter.
2. I am a member in good standing of the Bar of the District of Columbia and admitted to practice before the Commission.
3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.
4. I submit this Declaration in support of Complainant’s Motion to Compel. It is submitted simultaneously with Complainant’s Motion to Compel.
5. On April 1, 2021, CMA CGM S.A. (“CMA”) produced six redacted documents with Bates Nos. CMA0000015-CMA0000081. These redactions appear to include pricing and other commercial terms. Each document was produced with the designation Outside Counsel’s Eyes

Only (“OCEO”).

6. I emailed CMA’s counsel on April 6, 2021, to alert them to the deficiency in the production as it pertained to these redactions. A true and correct copy of this correspondence is attached hereto as **Exhibit 1**.

7. Having received no response regarding the redactions at issue, I emailed CMA’s counsel on June 28, 2021, inquiring whether CMA intended to produce unredacted documents. A true and correct copy of this correspondence is attached hereto as **Exhibit 2**.

8. On July 30, 2021, CMA produced eight redacted documents with Bates Nos. CMA0000110-CMA0000115; CMA0000387; CMA0000500-CMA0000501. Each document was produced with the designation OCEO. These redactions appear to include pricing and other commercial terms.

9. On August 2, 2021, CMA’s counsel replied to request a telephonic conference to discuss this issue. A true and correct copy of this correspondence is attached as **Exhibit 3**.

10. I conferred telephonically with CMA’s counsel on August 2, 2021. At this meet and confer, counsel explained that CMA’s principal concern is that Complainant’s expert will use the pricing information in other engagements. CMA provided no additional explanation for selectively redacting these documents.

11. A true and correct copy of the Second Amended Joint Confidentiality Stipulation in this matter is attached as **Exhibit 4**.

I declare that the foregoing is true and correct, executed this 20th day of August, 2021, in Washington, D.C.

/s/ David Golden

David Golden
Constantine Cannon LLP

Exhibit 1

From: [Golden, David](#)
To: [Rohde, Wayne](#); [Raleigh, Christopher](#); [Sobotta, Kathryn](#)
Cc: [Cannon, Stephen](#); [Greenstein, Seth](#); [Levine, Richard](#); [Fore, Wyatt](#); [Rodriguez Lopez, Paulette](#); [Samantar, Osob](#)
Subject: IMCC v. OCEMA, et al (FMC Dkt. No 20-14)
Date: Tuesday, April 6, 2021 7:04:42 PM

Counsel,

We write to regarding CMA CGM's recent document production. Our review of the documents is ongoing, but we have identified redactions of what appears to be business information in documents with following Bates range: CMA0000015-CMA0000081. These documents are designated Confidential OCEO. Please reply back with your client's basis for these redactions or if these redactions were applied in error.

Sincerely,

David Golden

[CONSTANTINE](#) | [CANNON](#)

1001 Pennsylvania Ave. NW

Suite 1300N

Washington, DC 20004

o: (202) 204-4527

m: (202) 329-0244

dgolden@constantinecannon.com

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Exhibit 2

From: [Golden, David](#)
To: [Rohde, Wayne](#); [Raleigh, Christopher](#); [Sobotta, Kathryn](#)
Cc: [Cannon, Stephen](#); [Greenstein, Seth](#); [Levine, Richard](#); [Fore, Wyatt](#); [Rodriguez Lopez, Paulette](#); [Samantar, Osob](#)
Subject: RE: IMCC v. OCEMA, et al (FMC Dkt. No 20-14)
Date: Monday, June 28, 2021 1:58:07 PM

Counsel,

We write to follow up on our April 6 request regarding the redacted documents referenced below. Please let us know by June 30 whether CMA CGM will be producing unredacted versions of these documents, and if so, when we can expect that production.

Sincerely,

David Golden

[CONSTANTINE | CANNON](#)

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m: (202) 329-0244

dgolden@constantinecannon.com



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From: Golden, David
Sent: Tuesday, April 6, 2021 7:05 PM
To: Rohde, Wayne <WRohde@cozen.com>; Raleigh, Christopher <CRaleigh@cozen.com>; Sobotta, Kathryn <KSobotta@cozen.com>
Cc: Cannon, Stephen <scannon@constantinecannon.com>; Greenstein, Seth <sgreenstein@constantinecannon.com>; Levine, Richard <rlevine@constantinecannon.com>; Fore, Wyatt <wfore@constantinecannon.com>; Rodriguez Lopez, Paulette <prodriguezlopez@constantinecannon.com>; Samantar, Osob <osamantar@constantinecannon.com>
Subject: IMCC v. OCEMA, et al (FMC Dkt. No 20-14)

Counsel,

We write to regarding CMA CGM's recent document production. Our review of the documents is ongoing, but we have identified redactions of what appears to be business information in documents with following Bates range: CMA0000015-CMA0000081. These documents are

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Sincerely,

David Golden

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Exhibit 3

From: [Raleigh, Christopher](#)
To: [Golden, David](#); [Fore, Wyatt](#)
Cc: [Rohde, Wayne](#); [Sobotta, Kathryn](#)
Subject: IMCC v. OCEMA, et al. - Redacted Documents
Date: Monday, August 2, 2021 12:38:30 PM

David,

Wayne and I can call you today at 3:00 or after to discuss CMA's redactions. Give us a time that works for you and we will call you.

Sincerely,

Chris/Wayne



Christopher Raleigh

Member | Cozen O'Connor

3 WTC, 175 Greenwich Street - 55th Floor | New York, NY 10007

P: 212-908-1245 F: 866-591-9125

[Email](#) | [Bio](#) | [LinkedIn](#) | [Map](#) | [cozen.com](#)

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Exhibit 4

EXHIBIT A

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

FMC Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT
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MANAGEMENT, LLC, CMA CGM S.A., COSCO
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HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
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COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

STIPULATION & SECOND AMENDED ORDER OF CONFIDENTIALITY

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials produced or disclosed in relation to this Proceeding that include “Confidential Information”

(defined below), including any information copied or extracted therefrom; all copies, excerpts, summaries, or compilations thereof; and testimony, conversations, or presentations by Parties or their counsel that include Confidential Information. These materials shall be referred to hereinafter as “Proceeding Material.” A person (including a Party or any person that is not a Party) that produces or discloses such information, documents, or materials in this Proceeding shall be referred to hereinafter as a “Producing Party.” A Party to this Proceeding that receives Proceeding Material shall be referred to hereinafter as “Receiving Party.”

Definition of Confidential Information

1. Each Producing Party shall have the right to designate information or Proceeding Material it produces as “Confidential” when it reveals or reflects:
 - a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
 - b. private or confidential personal information;
 - c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
 - d. information that is not publicly-known, that is not in the public domain, or that was previously disclosed to the Receiving Party in violation of a known obligation to maintain confidentiality or restrict disclosure.

Definition of Outside Counsel Eyes Only Information

2. Each Producing Party shall have the right to designate information or Proceeding Material it produces as Outside Counsel Eyes Only (“Confidential OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the competitive business interests or the privacy interests of the Producing Party or an individual or entity identified in that Proceeding Material.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

General Provisions

4. All Producing Parties designating Proceeding Material as Confidential and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR § 502.141(j)(1)(vii).

5. Confidential Information disclosed by a Producing Party shall be used solely in this Proceeding, and shall not be used by the Receiving Party for any business, commercial, competitive, personal, or other purpose.

6. The distribution and dissemination of any information designated as Confidential is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;

- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. The distribution and dissemination of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and outside co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

8. Notwithstanding any provisions herein to the contrary:

- a. Proceeding Material designated as Confidential OCEO shall not be shared with a Receiving Party's officer, manager, Board Member, employee, associational members of a Receiving Party, or with a known competitor (including, without limitation, current owners, shareholders, members, employees, officers, directors, or affiliates) of a Producing Party; and,
- b. Confidential Information produced by a non-party that is an Intermodal Equipment Provider shall not be disclosed to any current owners, shareholders, members, employees, officers, directors, or affiliates of a competing Intermodal Equipment Provider including, for the avoidance of doubt, Direct ChassisLink, Inc., FlexiVan Leasing, LLC, Interpool, Inc. d/b/a TRAC Intermodal, and North American Chassis Pool Cooperative.

9. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information against unauthorized or inadvertent disclosure, and shall limit access to Confidential Information to those persons identified above in Paragraphs 6 or 7.

10. Persons identified in Paragraphs 6(c), (d) and 7(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

11. A Party which learns that, by inadvertence or otherwise, it has disclosed Confidential Information in breach of this Order of Confidentiality, shall promptly: (a) notify the ALJ and the Producing Party of the unauthorized disclosures, (b) use its best efforts to retrieve all copies of the disclosed Confidential Information, (c) inform those to whom unauthorized disclosures were made of all the terms of this Order of Confidentiality, and (d) request such person or persons to execute the Certification form annexed at Appendix A. Thereafter, the

Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

12. The Parties shall either destroy all Proceeding Material designated Confidential Information or return them to the original Producing Party at the Producing Party's expense within forty-five (45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

13. Unless otherwise ordered or agreed to by a Producing Party with respect to that Producing Party's Proceeding Material, this Order shall remain in force after the final conclusion of this Proceeding by settlement or final judgment not subject to further appeal for a period of two years.

Privileged and Protected Material

14. The Producing Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

15. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

16. Within forty-eight (48) hours of the receipt of a written notice from a Producing Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as

confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

Use of Confidential Information in Commission Hearings

17. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

18. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

Designating Protected Material

19. Documents containing Confidential Information as defined in Paragraphs 1, 2, and 3 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information. Parties shall take reasonable steps to ensure that copies of such documents marked “Confidential” or “Confidential OCEO,” and extracts, summaries and compilations therefrom to be used in this Proceeding, shall also be so marked.

20. Where a Producing Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents or which adequately describes the electronic documents, which comprise Confidential Information. Electronic files and documents produced in native format may be marked by using “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on placeholders in the Producing Party’s document production.

21. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within ten (10) days after receipt of the official deposition transcript or deposition copy. Unless otherwise agreed by the Producing Party, a transcript shall be treated as Confidential OCEO until the expiration of the ten-day period. Counsel that introduce Confidential Information of a Producing Party that is a non-party at a deposition shall ensure that deposition exhibits and testimony containing such Confidential Information and any documents are designated as Confidential or Confidential OCEO in accordance with the designation by the Producing Party.

22. Any Producing Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

23. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

Challenging Confidential Designations

24. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

25. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party’s Counsel.

26. If the challenging Party and the Producing Party are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

27. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential or Confidential OCEO designation thirty (30) days after the date of the letter referred to in Paragraph 25.

Reservation of Rights

28. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential Information disclosed under protection of this Order of Confidentiality.

29. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, or is ordered to be disclosed by the Commission, the Party to whom the request has been made or an order directed shall promptly give written notice of such event to the Producing Party. No Party shall disclose another Producing Party's Confidential Information pursuant to such process without first giving that Producing Party notice for an opportunity to seek an order governing disclosure of the requested information. The Producing Party shall have the sole burden of defending against such request.

DATED: June 3, 2021

APPENDIX A

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

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AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

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COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

DOCKET NO. 20-14

**CERTIFICATION TO BE BOUND BY STIPULATION
AND ORDER OF CONFIDENTIALITY**

I, _____ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 6 or 7 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

Signature

Printed Name